

FORM 70 AA

NOTICE OF PRE-MOTION CONFERENCE

**Supreme Court of Prince Edward Island
(Family Section)**

Court File No.:

Applicant/Petitioner:

Respondent:

NOTICE OF PRE-MOTION CONFERENCE

You (and your lawyer, if any) are **required** to attend a pre-motion conference which will be held at the Law Courts at _____, PEI on the _____ day of _____, 20_____, at the hour of _____ o'clock.

The purpose of this hearing is to identify the issues to be dealt with in the motion and to identify any issues where settlement may be possible.

You (or your lawyer) are **required** to complete and serve on the other party the following court documents:

- ☐ Designation of Address for Service (Form 16 A.1) (*if not already served and filed*); and
- ☐ Pre-Motion Conference Memorandum (*check one*):
 - ☐ Pre-Motion Conference Memorandum (Form 70 BB); or
 - ☐ Pre-Motion Conference Memorandum for Contact Orders Only (Form 70 BB.1).

The moving party's Pre-Motion Conference Memorandum together with proof of service must be filed with the Court at least **Ten (10) days** prior to the Pre-Motion Conference date set out above or at least **Twenty (20) days** if the responding party lives outside of the province. The responding party's Pre-Motion Conference Memorandum must be served and filed at least **Four (4) days** prior to the date above. (See Practice Note 41)

FAILURE TO RESPOND to this Notice OR to APPEAR at the Pre-Motion Conference may result in an Order being made against you for the relief sought in the motion, costs or such other relief as the judge deems just in the circumstances.

(Date)

D. Registrar